

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
YOLANDA FELIPE,

Plaintiff,

-against-

THE CITY OF NEW YORK, THE NEW YORK CITY
POLICE DEPARTMENT, POLICE OFFICER FANNY
SOUFFRONT, POLICE OFFICER FRANK COLAMESTO
and SERGEANT ALEXIS FERNANDEZ,

Defendants.

Index No.: 23229/2017E

SUPPLEMENTAL
SUMMONS

**Plaintiff designates Bronx
County as Place of Trial.**

**The basis of venue is that
Bronx County is the
County within the City of
New York in which the
cause of action arose
against defendant, the City
of New York [CPLR
504(3)].**

-----X
YOU ARE HEREBY SUMMONED to answer the Complaint in this action and to
serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a
Notice of Appearance, on the Plaintiff's Attorneys within twenty (20) days after the service of
this Summons, exclusive of the date of service (or within thirty (30) days after the service is
complete if this Summons is not personally delivered to you within the State of New York); and
in case of your failure to appear or answer, judgment will be taken against you by default for the
relief demanded in the Complaint with interest and cost from the date of occurrence.

Dated: New York, New York
October 17, 2018

RASKIN AND KREMINS, L.L.P.

MICHAEL F. KREMINS, ESQ.
Attorneys for Plaintiff
YOLANDA FELIPE
160 Broadway - 4th Floor
New York, New York 10038
(212) 587-3434
Our File No.: N-4532

DEFENDANTS' ADDRESSES:

ZACHARY W. CARTER, ESQ.

Corporation Counsel of the

City of New York

Attorney for Defendants

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE

DEPARTMENT, POLICE OFFICER FANNY SOUFFRONT,

POLICE OFFICER FRANK COLAMESTO

100 Church Street

New York, New York 10007

(718) 620-1017

File No: 2017-018596

SERGEANT ALEXIS FERNANDEZ

Shield No: 2194

New York City Police Department

1 Police Plaza

New York, NY 10038

SUPREME COURT OF THE STATE OF NEW YORK
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**PROPOSED AMENDED
COMPLAINT**

PLAINTIFF, YOLANDA FELIPE, by her attorneys, RASKIN AND KREMINS, L.L.P.,
complaining of defendants, upon information and belief, respectfully alleges as follows:

AS AND FOR A FIRST CAUSE OF ACTION

1. That at all times hereinafter mentioned, plaintiff, YOLANDA FELIPE ("plaintiff"), was
and is a resident of the County of Queens, City and State of New York.
2. That at all times hereinafter mentioned, defendant, THE CITY OF NEW YORK, was and
still is a municipal corporation duly organized and existing under and by virtue of the
laws of the State of New York.
3. That at all times hereinafter mentioned, defendant, THE NEW YORK CITY POLICE
DEPARTMENT, was and still is a department and/or agency that is wholly owned and
managed by defendant, THE CITY OF NEW YORK.
4. That at all times hereinafter mentioned, defendant, POLICE OFFICER FANNY
SOUFFRONT ("Officer Souffront"), was employed by defendant, THE CITY OF NEW
YORK.

5. That at all times hereinafter mentioned, defendant, POLICE OFFICER FRANK COLAMESTO ("Officer Colamesto"), was employed by defendant, THE CITY OF NEW YORK.
6. That at all times hereinafter mentioned, defendant, SERGEANT ALEXIS FERNANDEZ ("Sgt. Fernandez"), was employed by defendant, THE CITY OF NEW YORK.
7. That at all times hereinafter mentioned, Officer Souffrant was employed by defendant, THE NEW YORK CITY POLICE DEPARTMENT.
8. That at all times hereinafter mentioned, defendant, Officer Colamesto was employed by defendant, THE NEW YORK CITY POLICE DEPARTMENT.
9. That at all times hereinafter mentioned, defendant, Sergeant Fernandez was employed by defendant, THE NEW YORK CITY POLICE DEPARTMENT.
10. That on the 20th day of April, 2016, a date within ninety (90) days after the date on which the subject incident occurred, a written Notice of Claim, dated and sworn to on April 20, 2016 ("Notice of Claim"), was duly served upon the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, pursuant to Section 50-e of the General Municipal Law.
11. Upon information and belief, on or about July 18, 2016, plaintiff, YOLANDA FELIPE, attended a hearing pursuant to Section 50-h of the General Municipal Law pursuant to a notice of such hearing by defendant, THE CITY OF NEW YORK.
12. More than thirty (30) days have elapsed since the presentation of the Notice of Claim, and adjustment or payment thereof has been refused or neglected by the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE

OFFICER FANNY SOUFFRONT, POLICE OFFICER FRANK COLAMESTO and SERGEANT ALEXIS FERNANDEZ.

13. That plaintiff has complied with all conditions precedent to the commencement of this action, and in particular, within ninety (90) days of this occurrence plaintiff has served the Notice of Claim upon defendants as aforesaid, more than thirty (30) days have elapsed since the presentation of her claim and adjustment or payment thereof has been neglected or refused by defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER FANNY SOUFFRONT, POLICE OFFICER FRANK COLAMESTO and SERGEANT ALEXIS FERNANDEZ, and plaintiff has attended a hearing pursuant to Section 50-H of the General Municipal Law.
14. This action was commenced against the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER FANNY SOUFFRONT, POLICE OFFICER FRANK COLAMESTO and SERGEANT ALEXIS FERNANDEZ on a date within one (1) year and ninety (90) days after the occurrence of the incident upon which this action is based and/or the accrual of this cause of action.
15. That at all times hereinafter mentioned, defendant, POLICE OFFICER FANNY SOUFFRONT, was a member of THE NEW YORK CITY POLICE DEPARTMENT and acting within the scope of her employment.
16. That at all times hereinafter mentioned, defendant, POLICE OFFICER FRANK COLAMESTO, was a member of THE NEW YORK CITY POLICE DEPARTMENT ("NYPD") and acting within the scope of his employment.
17. That at all times hereinafter mentioned, defendant, SERGEANT ALEXIS FERNANDEZ was a member of THE NEW YORK CITY POLICE DEPARTMENT

and acting within the scope of his employment.

18. That on or about January 22, 2016, at approximately 6:25 pm., defendants, POLICE OFFICER FANNY SOUFFRONT, POLICE OFFICER FRANK COLAMESTO and SERGEANT ALEXIS FERNANDEZ came to be present at/near the vicinity of 188th Street and Creston Avenue, Bronx County, City and State of New York, during the normal course of their employment with defendants, THE CITY OF NEW YORK and/or THE NEW YORK CITY POLICE DEPARTMENT.
19. That on or about January 22, 2016, at approximately 6:25 pm., plaintiff was lawfully at/near the vicinity of 188th Street and Creston Avenue, Bronx County, City and State of New York.
20. On or about, January 22, 2016, at or about 6:25 pm., plaintiff drove her vehicle, a 2011 Honda suburban (New York Registration GYJ8048) (the "Honda"), to the corner of 188th Street and Creston Avenue, Bronx, New York.
21. Plaintiff's mother, Rosa Felipe, resides at 2435 Creston Avenue, Bronx New York, which is situated between 184th Street and 188th Street.
22. Plaintiff intended to visit her mother and take her mother shopping.
23. Due to NYPD activity, the block between 184th Street and 188th Street on Creston Avenue was cordoned off which prevented plaintiff from driving to her mother's residence.
24. Plaintiff drove to the northwest corner of Creston Avenue and 188th Street and spoke to a NYPD Officer, who, upon information and belief, was Officer Souffront, to explain why she was there and to ask where she could park the Honda.
25. Officer Souffront gave plaintiff permission to drive onto Creston Avenue.

26. Officer Souffrant directed plaintiff to move the traffic barrier and proceed onto Creston Avenue.
27. As plaintiff was moving the traffic barrier, Sgt. Doe approached Plaintiff and asked her what she was doing.
28. When plaintiff advised Sgt. Doe that Officer Souffrant had given her permission to move the traffic barrier and drive onto Creston Avenue, Sgt. Fernandez told Plaintiff that he would not permit it and directed plaintiff to park elsewhere.
29. As Plaintiff returned to the Honda, Sgt. Fernandez called plaintiff a “Fucking Nigger Bitch,” or words to that effect.
30. Sergeant Fernandez uttered the foregoing epithet in the presence of plaintiff’s 13-year-old daughter, who was sitting in the front passenger seat of the Honda and heard the epithet.
31. Sergeant Fernandez uttered the foregoing epithet without cause or provocation of any kind from plaintiff.
32. In compliance with further direction of the NYPD Officer, who, upon information and belief, was Officer Souffrant, plaintiff then legally parked the Honda on 188th Street between Creston Avenue and Grand Concourse, left her daughter in the Honda and returned to the northwest corner of Creston Avenue and 188th Street and proceeded along Creston Avenue in the direction of her mother’s building.
33. Plaintiff then approached Sgt. Fernandez, who was seated in a NYPD vehicle, and asked for his name and badge number because of the epithet that he had uttered.
34. Sergeant Fernandez left the NYPD vehicle and approached Plaintiff in a menacing manner thereby placing Plaintiff in fear of imminent bodily harm.
35. Sergeant Fernandez eventually demanded that Plaintiff produce her license and

registration.

36. Plaintiff explained that she had left her license and registration in the Honda, whereupon Sgt. Fernandez ordered that Plaintiff be arrested and charged.
37. Sergeant Fernandez also threatened to apprehend Plaintiff's daughter and "put her through the system," or words to that effect.
38. Without her consent and in the presence of her sister and family friends, Plaintiff was placed in handcuffs and placed in a NYPD police vehicle.
39. Pursuant to Sgt. Fernandez's direction, Plaintiff was transported to the 46th Precinct Police Station, 2120 Ryer Avenue, Bronx, New York 10457, where she was confined in a holding cell for approximately four (4) hours before being released.
40. Plaintiff was fully aware of her arrest and confinement.
41. Plaintiff did not consent to her arrest and confinement.
42. Upon information and belief, the arrest and confinement of Plaintiff was not otherwise privileged.
43. Officer Souffront wrongfully and without probable cause charged plaintiff with unlicensed operation of a motor vehicle [in violation of Vehicle & Traffic Law ("VTL.") _509(1)] and obstruction of vehicular traffic [in violation of Penal Law _240.20(5)].
44. Upon information and belief, the foregoing charges were dismissed.
45. Officer Souffront also wrongfully and without probable cause issued Plaintiff a parking ticket.
46. Upon information and belief, the foregoing parking ticket was dismissed.
47. Officer Colamesto wrongfully and without probable cause charged Plaintiff with disorderly conduct [in violation of Penal Law _240.20(1)].

48. Upon information and belief, the foregoing charge was dismissed.
49. That on or about January 22, 2016, from at or about 6:25 p.m. through at or about 11:00 pm., as a result of the wrongful, willful, reckless, careless and negligent acts of defendants herein, their agents, servants and/or employees, plaintiff sustained severe and permanent personal injuries.
50. That the foregoing occurred solely and wholly as a result of the negligence of defendants herein, their agents servants and/or employees, and without any negligence on the part of the plaintiff contributing thereto.
51. That the defendants, their agents, servants and/or employees were negligent and careless in hiring, supervising, controlling, maintaining, training, educating, interviewing and investigating their agents, servants and/or employees, including, but not limited to, Sgt. Fernandez, Officer Souffrant and Officer Colamesto; in negligently and carelessly failing to direct their agents, servants and/or employees, including but not limited to Sgt. Fernandez, Officer Souffrant and Officer Colamesto, not to use improper and/or excessive force; in negligently and carelessly, willfully and wrongfully causing, permitting and allowing plaintiff to be subjected to assault and battery, traumatized, pushed, shoved, falsely arrested and wrongfully imprisoned causing injury, emotional and psychological damage; in negligently and carelessly causing, permitting and allowing employees and/or personnel who were negligently trained, including, but not limited to Sgt. Fernandez, Officer Souffrant and Officer Colamesto, to use improper and/or excessive force; in negligently and carelessly using improper and/or excessive force; in negligently and carelessly failing to adequately train police officers, including but not limited to Sgt. Fernandez, Officer Souffrant and Officer Colamesto, and/or other

personnel for the public's safety, including plaintiff herein; in denying prompt and necessary medical attention; and in being otherwise careless and negligent.

52. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to her damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SECOND CAUSE OF ACTION

53. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 52 of the complaint herein with the same force and effect as if set forth herein at length.
54. Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER FANNY SOUFFRONT, POLICE OFFICER FRANK COLAMESTO and SERGEANT ALEXIS FERNANDEZ, their agents, servants and employees, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto, owed a duty to plaintiff and other members of the general public to refrain from inflicting mental and emotional harm upon them.
55. Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto, by intentionally, negligently, carelessly or recklessly engaging in the acts and omissions described hereinabove and

hereinafter, and by further uttering epithets at plaintiff in the presence of her daughter, arresting, detaining and imprisoning plaintiff without a warrant and/or without reasonable cause to believe that a crime had been committed and that plaintiff committed it, by uttering epithets at plaintiff in the presence of her daughter, arresting, detaining and handcuffing plaintiff in the presence of her sister and family friends, by forcing plaintiff into a NYPD vehicle in such a manner that she sustained bodily injury, by confining her in a holding cell at the 46th Precinct Police Station for a period of approximately four (4) hours and falsely and unjustly charging plaintiff with various crimes, engaged in conduct toward plaintiff so shocking, extreme and outrageous that it exceeded all reasonable bounds of decency.

56. As a result of the foregoing conduct, Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto, intentionally, negligently, carelessly or recklessly caused plaintiff to suffer and to continue to suffer severe mental and emotional distress.
57. As a result of the extreme, shocking, outrageous, intentional, negligent, careless and/or reckless conduct that exceeded all reasonable bounds of decency, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto, plaintiff suffered and continues to suffer severe mental and emotional distress, nervousness, tenseness, indignity, humiliation, shame and disgrace associated with the incident which is the subject of this complaint and the physical injuries.
58. The injuries sustained by plaintiff were caused without any fault or want of care on the part of plaintiff contributing thereto, but only by reason of intentional acts or conduct,

negligence, carelessness and recklessness of defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto,

59. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

AS AND FOR A THIRD CAUSE OF ACTION

60. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 59 of the complaint herein with the same force and effect as if set forth herein at length.
61. At all times herein mentioned and in connection with all the acts alleged hereinabove, plaintiff was wrongly restrained, detained, arrested, apprehended, confined and imprisoned by defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto.
62. At all times herein mentioned and in connection with all the acts alleged hereinabove, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto, acted during the course of and within the scope of their duties as employees, agents or servants of the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT.

63. At all times herein mentioned and in connection with all the acts alleged hereinabove, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto, acted willfully, maliciously, wrongfully, in reckless disregard of plaintiff's interests and without proper legal authority, right, warrant, legal pretense or probable cause.
64. Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto, did not have reasonable cause to believe that a crime was committed and that plaintiff committed it.
65. Plaintiff did not consent to her arrest, detention, forcible apprehension, placement in handcuffs, confinement in a holding cell at 46th Precinct Police Station, search of her person, interrogation or any of the acts or omissions of defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto.
66. Plaintiff did not commit any crimes and/or other suspicious acts, and probable cause and/or reasonable suspicion did not exist to link plaintiff to any crimes and/or other suspicious acts.
67. Plaintiff's arrest, detention, forcible apprehension, placement in handcuffs, confinement in a holding cell at 46th Precinct Police Station, search of her person, interrogation or other deprivation of her liberty by defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto, were not otherwise privileged.

68. By reason of the foregoing, plaintiff has sustained injuries as more full set forth above and has been damaged in an amount which exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FOURTH CAUSE OF ACTION

69. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 68 of the complaint herein with the same force and effect as if set forth herein at length.
70. At all times herein mentioned and in connection with all the acts and omissions alleged hereinabove, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto, caused plaintiff to fear that defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto, would inflict upon plaintiff, or cause to be inflicted upon plaintiff, harmful or offensive physical contact.
71. At all times herein mentioned and in connection with all the acts and omissions alleged hereinabove, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto, inflicted, or caused to be inflicted, offensive bodily contact and bodily harm upon plaintiff.
72. At all times herein mentioned and in connection with all the acts and omissions alleged hereinabove, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt.

Fernandez, Officer Souffront and Officer Colamesto, acted during the course of and within the scope of their duties as employees, agents or servants of defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT.

73. At all times herein mentioned and in connection with all the acts and omissions alleged hereinabove, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto, acted willfully, maliciously, wrongfully, in reckless disregard of plaintiff's interests and without proper legal authority, right, warrant, legal pretense or probable cause and without consent plaintiff.
74. By reason of the foregoing, plaintiff was fearful of imminent bodily injury, and suffered fright, apprehension and humiliation.
75. By reason of the foregoing, plaintiff sustained physical injury and offensive bodily contact and physical injuries as alleged above.
76. By reason of the foregoing, plaintiff has been damaged in an amount which exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

AS AND FOR A FIFTH CAUSE OF ACTION

77. Plaintiff repeats and realleges the allegations contained in paragraphs 1 through 76 above with the same force and effect as though the same were here fully set forth.
78. On or about January 22, 2016, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto, as agents, employee, or servants of defendants, THE CITY OF NEW YORK, THE NEW YORK

CITY POLICE DEPARTMENT, deprived plaintiff of her liberty and civil rights, including her Fourth Amendment rights to be free from unreasonable seizure and not to be subjected to unreasonable force in the course of an arrest, without due process of law.

79. On or about January 22, 2016, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto, as agents, employees, or servants of the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, were acting under color of state law in their unlawful arrest, apprehension, detention, search and interrogation of plaintiff and in the application of unreasonable force during the course of their unlawful arrest, apprehension, detention, search and interrogation of plaintiff and abused their official power.
80. In their unlawful arrest, apprehension, detention, search and interrogation of plaintiff, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto, as agents, employees, or servants of the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, acted in their capacity as authorized decision-makers and makers of official policy of the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT.
81. In the application of unreasonable force during the course of their unlawful arrest, apprehension, detention, search and interrogation of plaintiff, defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront

and Officer Colamesto, as agents, employees, or servants of the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, acted in their capacity as authorized decision-makers and makers of official policy of the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT.

82. Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto, did not have reasonable cause to believe that a crime was committed and that plaintiff committed it.
83. Plaintiff did not consent to her arrest, detention, forcible apprehension, placement in handcuffs, confinement in a holding cell at 46th Precinct Police Station, search of her person, interrogation or any of the acts or omissions of defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto.
84. Plaintiff did not commit any crimes and/or other suspicious acts, and probable cause and/or reasonable suspicion did not exist to link plaintiff to any crimes and/or other suspicious acts.
85. Plaintiff's arrest, detention, forcible apprehension, placement in handcuffs, confinement in a holding cell at 46th Precinct Police Station, search of her person, interrogation or other deprivation of her liberty by defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernadnez, Officer Souffront and Officer Colamesto, were not otherwise privileged.

86. Plaintiff did not present an immediate threat to the safety of defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto.
87. Plaintiff did not actively resist arrest at the time defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto, used excessive force.
88. Defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto, are liable to plaintiff for the deprivation of plaintiff's liberty and civil rights, including her Fourth Amendment rights to be free from unreasonable seizure and not to be subjected to unreasonable force in the course of an arrest, by virtue of 42 U.S.C. §1983 and the Fourteenth Amendment of the Constitution of the United States.
89. By reason of the foregoing violations of 42 U.S.C. §1983, and as a result of the injuries described hereinabove sustained by plaintiff, plaintiff has suffered damages.
90. Solely by reason of the violation of 42 U.S.C. §1983 by the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto, and as a direct and proximate cause thereof, plaintiff has suffered the personal injuries alleged above.
91. As a result of the violation of 42 U.S.C. §1983 by the defendants, THE CITY OF NEW

YORK, THE NEW YORK CITY POLICE DEPARTMENT, their agents, employees and servants, including, but not limited to, Sgt. Fernandez, Officer Souffront and Officer Colamesto, as set forth above, and as a result of the injuries sustained by plaintiff, plaintiff has been damaged in an amount which exceeds the jurisdictional amount of all lower courts which would otherwise have jurisdiction.

AS AND FOR A SIXTH CAUSE OF ACTION

92. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 91 of the complaint herein with the same force and effect as if set forth herein at length.
93. That the defendants, POLICE OFFICER FANNY SOUFFRONT, POLICE OFFICER FRANK COLAMESTO, and SERGEANT ALEXIS FERNANDEZ, acting under the color of authority and without provocation, viciously and maliciously attacked the plaintiff causing her to suffer serious, severe, permanent personal injuries and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.
94. That the defendants, POLICE OFFICER FANNY SOUFFRONT, POLICE OFFICER FRANK COLAMESTO, and SERGEANT ALEXIS FERNANDEZ, acting under the color of authority and without provocation, viciously and maliciously assaulted the plaintiff causing her to suffer serious, severe, permanent and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.
95. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue

for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to his damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A SEVENTH CAUSE OF ACTION

96. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 95 of the complaint herein with the same force and effect as if set forth herein at length.
97. That the defendants, POLICE OFFICER FANNY SOUFFRONT, POLICE OFFICER FRANK COLAMESTO, and SERGEANT ALEXIS FERNANDEZ, acting under the color of authority and without provocation, viciously and maliciously beat the plaintiff causing her to suffer serious, severe, permanent personal injuries and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.
98. That the defendants, POLICE OFFICER FANNY SOUFFRONT, POLICE OFFICER FRANK COLAMESTO, and SERGEANT ALEXIS FERNADNEZ, acting under the color of authority and without provocation, viciously and maliciously battered the plaintiff causing her to suffer serious, severe, permanent personal injuries and extreme conscious physical, mental and emotional pain and suffering, and required, and will require, hospitalization, medical care and treatment.
99. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue

for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to her damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A EIGHTH CAUSE OF ACTION

100. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 99 of the complaint herein with the same force and effect as if set forth herein at length.
101. That the defendants, POLICE OFFICER FANNY SOUFFRONT, POLICE OFFICER FRANK COLAMESTO, and SERGEANT ALEXIS FERNANDEZ acting under the color of authority and without provocation, viciously and maliciously falsely arrested the plaintiff, wrongfully depriving plaintiff of her liberty.
102. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to her damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A NINTH CAUSE OF ACTION

103. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 102 of the complaint herein with the same force and effect as if set forth herein at

length.

104. That the defendants, POLICE OFFICER FANNY SOUFFRONT, POLICE OFFICER FRANK COLAMESTO and SERGEANT ALEXIS FERNANDEZ, acting under the color of authority and without provocation, viciously and maliciously falsely imprisoned the plaintiff, for approximately eight (8) days, wrongfully depriving plaintiff of her liberty.
105. That the plaintiff was conscious of her confinement, did not consent to her confinement, and the confinement was not otherwise privileged or with just or probable cause.
106. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to her damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A TENTH CAUSE OF ACTION

107. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 106 of the complaint herein with the same force and effect as if set forth herein at length.
108. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, acting under the color of authority and without provocation, viciously and maliciously falsely prosecuted the plaintiff, wrongfully depriving plaintiff of her liberty and due process of law.
109. That the defendants, THE CITY OF NEW YORK and THE NEW YORK CITY POLICE

DEPARTMENT, acting under the color of authority and without provocation, viciously and maliciously falsely compelled the plaintiff to appear in public and in court, wrongfully humiliating the plaintiff herein and depriving her of her liberty and due process of law.

110. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to her damage in a sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A ELEVENTH CAUSE OF ACTION

111. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 110 of the complaint herein with the same force and effect as if set forth herein at length.
112. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, violated plaintiff's property and liberty interests guaranteed to the plaintiff as a citizen of the United States under the Fourteenth Amendment to the United States Constitution, and are therefore liable pursuant to 42 U.S.C. § 1983.
113. That the aforementioned acts of defendants, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, violated plaintiff's property and liberty

interests guaranteed to the plaintiff as a resident of the State of New York under Article 1, Section 6 of the Constitution of the State of New York.

114. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to her damage in the sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A TWELFTH CAUSE OF ACTION

115. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 114 of the complaint herein with the same force and effect as if set forth herein at length.
116. That the aforementioned acts of POLICE OFFICER FANNY SOUFFRONT, POLICE OFFICER FRANK COLAMESTO, and SERGEANT ALEXIS FERNANDEZ, under color of law and under color of their authority as employees, agents and/or servants of THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, violated plaintiff's right to equal protection under the law guaranteed to the plaintiff as a citizen of the United States under the Fourteenth Amendment to the United States Constitution, and are therefore liable pursuant to 42 U.S.C. § 1983.
117. That the aforementioned acts of defendants, POLICE OFFICER FANNY SOUFFRONT, POLICE OFFICER FRANK COLAMESTO, and SERGEANT ALEXIS FERNANDEZ, under color of law and under color of their authority as employees, agents and/or servants of

THE CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT, violated plaintiff's right to equal protection under the law guaranteed to the plaintiff as a resident of the State of New York under Article 1, Section 11 of the Constitution of the State of New York.

118. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to her damage in the sum which exceeds the jurisdictional limits of all lower courts.

AS AND FOR A THIRTEENH CAUSE OF ACTION

119. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs 1 through 118 of the complaint herein with the same force and effect as if set forth herein at length.
120. That by reason of the foregoing acts and/or omissions of defendants in violation of the Fourteenth Amendment to the United States Constitution, plaintiff has been forced to bring this lawsuit to enforce 42 U.S.C. § 1983 and as a result thereof has suffered significant economic loss in the form of attorney's fees.
121. That pursuant to 42 U.S.C. § 1983, plaintiff is entitled to reasonable attorney's fees as part of costs.

AS AND FOR A FOURTEENTH CAUSE OF ACTION

122. Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs

1 through 121 of the complaint herein with the same force and effect as if set forth herein at length.

123. That at all times hereinafter mentioned, defendants, without cause or justification, did intentionally inflict emotional distress upon plaintiff, causing plaintiff to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.
124. That at all times hereinafter mentioned, defendants, without cause or justification, did negligently inflict emotional distress upon plaintiff, causing plaintiff to suffer mental pain and anguish, emotional trauma and conscious pain and suffering.
125. That by reason of the foregoing, the plaintiff became sick, sore, lame and disabled; plaintiff has received permanent personal, emotional and psychological injuries that will continue for some time to come; plaintiff will expend significant sums of money for required medical attention and aid in an endeavor to be cured; and that plaintiff was caused to suffer great psychological injury, emotional agony and mental anguish and verily believes that same will continue for a long time to come, all to her damage in the sum which exceeds the jurisdictional limits of all lower courts.
126. This action falls into one or more of the exceptions set forth in CPLR _1602.

WHEREFORE, plaintiff, YOLANDA FELIPE, demands judgement against the defendants, THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE OFFICER FANNY SOUFFRONT, POLICE OFFICER FRANK COLAMESTO and SERGEANT ALEXIS FERNANDEZ, in an amount which exceeds the jurisdictional limits of all lower courts, together with the costs, interest and disbursements of this action, and for such other and further relief as to this Court may deem just, proper and equitable.

Dated: New York, New York
October 17, 2018

Yours, etc.,
RASKIN AND KREMINS, L.L.P.

MICHAEL F. KREMINS, ESQ.
Attorneys for Plaintiff
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New York, New York 10038
(212) 587-3434

Index No. 23229/2017E
SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX
YOLANDA FELIPE,

Plaintiff,
-against-

THE CITY OF NEW YORK, THE NEW YORK CITY POLICE DEPARTMENT, POLICE
OFFICER FANNY SOUFFRONT, POLICE OFFICER FRANK COLAMESTO and SERGEANT
ALEXIS FERNANDEZ,

Defendants.

PROPOSED SUMMONS AND VERIFIED COMPLAINT

RASKIN & KREMINS, L.L.P.
Attorneys for Plaintiff(s)
160 Broadway - 4th Floor
New York, New York 10038
(212) 587-3434

To: Attorney(s) for Defendant(s)

PLEASE TAKE NOTICE
NOTICE OF
ENTRY

☐ that the within is a (certified) true copy of an Order entered in the office of the Clerk
of the within named Court on , 2000.

NOTICE OF
SETTLEMENT

☐ that an Order of which the within is a true copy will be presented to the Hon. ,
one of the judges of the within named Court, at , on .